

ELIZABETH II



1971 CHAPTER lii

An Act to empower the county council of the administrative county of East Sussex to construct a bridge across the river Ouse with approach roads and other works and to purchase lands compulsorily for those and other purposes, to provide for the removal of an existing bridge across the river Ouse; and for other purposes.
[27th July 1971]

WHEREAS—

(1) The construction of a swing bridge for vehicular and pedestrian traffic over the river Ouse (in this Act referred to as “the river”) in the urban district of Newhaven in the county of East Sussex would be of public and local advantage and it is expedient that the county council of the administrative county of East Sussex (in this Act referred to as “the Council” and “the county” respectively) should be empowered to construct the bridge by this Act authorised:

(2) It is expedient that provision should be made for the removal of the existing swing bridge authorised by the Newhaven Harbour and Ouse Lower Navigation Improvement Act 1863: 1863 c. clxxxiv.

(3) It is expedient to confer on the Council the powers in this Act contained relative to the purchase and use of lands for the purposes mentioned in this Act:

(4) It is expedient that the other provisions contained in this Act be enacted:

(5) The purposes of this Act cannot be effected without the authority of Parliament:

(6) Estimates have been prepared for the purposes hereinafter mentioned and such estimates are as follows:—

The construction of the works authorised by	
this Act 	£504,000

(7) The works included in such estimates are permanent works and it is expedient that the Council be empowered to borrow money for those and other purposes as provided by this Act:

1933 c. 51. (8) In relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act 1933 have been observed:

(9) A plan and sections, showing the lines or situations and levels of the works authorised by this Act and also showing the lands which may be acquired or used compulsorily by the Council for the purposes or under the powers of this Act, and also a book of reference to the said plan containing the names of the owners and lessees, or reputed owners and lessees and of the occupiers of the said lands and describing the same, were duly deposited in the office of the Clerk of the Parliaments and in the Private Bill Office of the House of Commons and with the clerk of the Council, which plan, sections and book of reference are in this Act referred to respectively as the deposited plan, the deposited sections and the deposited book of reference:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

PRELIMINARY

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| Short title. | 1. This Act may be cited as the East Sussex County Council (Newhaven Bridge) Act 1971. |
| Division of Act into Parts. | 2. This Act is divided into Parts as follows:—
Part I.—Preliminary.
Part II.—Lands.
Part III.—Works.
Part IV.—Finance and general. |

3.—(1) In this Act the several words and expressions to which meanings are assigned by sections 213 and 295 of the Highways Act 1959 have the same respective meanings unless there be something in the subject or context or in this section repugnant to such construction.

PART I
—cont.

Interpretation.
1959 c. 25.

(2) In this Act, unless otherwise expressly enacted or unless the subject or context otherwise requires—

“ the Act of 1863 ” means the Newhaven Harbour and Ouse Lower Navigation Improvement Act 1863;

1863 c. clxxxiv.

“ the Act of 1965 ” means the Compulsory Purchase Act 1965;

1965 c. 56.

“ the board ” means the British Railways Board;

“ the bridge ” means the swing bridge over the river to be constructed as part of Work No. 1 and includes the carriageways and footways thereon;

“ the Council ” means the county council of the county;

“ the county ” means the administrative county of East Sussex;

“ the county clerk ” means the clerk of the council;

“ the existing bridge ” means the existing swing bridge authorised by the Act of 1863;

“ the level of high water ” means the level of mean high-water springs;

“ the river ” means the river Ouse;

“ the specified period ” means the period commencing four hours before the time of high tide in the river at the bridge and ending two hours after that time;

“ telegraphic line ” has the same meaning as in the Telegraph Act 1878;

1878 c. 76.

“ tidal work ” means so much of any of the works as is on, under or over tidal waters or tidal lands below the level of high water;

“ the tribunal ” means the Lands Tribunal;

“ the Trinity House ” means the Corporation of Trinity House of Deptford Strond;

“ the works ” means the works authorised by this Act.

(3) All distances and lengths stated in any description of works, powers or lands in this Act (other than in subsection (2) of section 15 (Power to construct works)) shall be construed as if the words “ or thereabouts ” were inserted after each such distance or length.

c. lii *East Sussex County Council (Newhaven Bridge)*
Act 1971

PART I
—cont.

(4) Unless the context otherwise requires, any reference in this Act to a work identified by the number of such work shall be construed as a reference to the work of that number authorised by this Act.

(5) References in this Act to the Secretary of State are references to the Secretary of State for the Environment except where they occur in sections 20, 31, 33, 34, 36 and 37 where they are references to the Secretary of State for Trade and Industry.

(6) Unless the context otherwise requires, any reference in this Act to any enactment shall be construed as a reference to that enactment as amended by or by virtue of any subsequent enactment, including this Act.

Application
and
modification
of enactments.

1946 c. 49.

4.—(1) (a) Part I of the Act of 1965 (except section 4, section 24 (5), section 27 and paragraph 3 (3) of Schedule 3 thereof), in so far as it is applicable for the purposes of this Act and is not inconsistent with the provisions thereof, shall apply to the compulsory acquisition of land under this Act as it applies to a compulsory purchase to which Schedule 1 to the Acquisition of Land (Authorisation Procedure) Act 1946 applies and as if this Act were a compulsory purchase order under the said Act of 1946.

(b) In section 11 (1) of the Act of 1965 as so applied, for the words “fourteen days” there shall be substituted the words “three months”.

1845 c. 18.

(c) The Lands Clauses Consolidation Act 1845 shall not apply to the acquisition of land under this Act.

1845 c. 20.

(2) (a) The provisions of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof are hereby incorporated with this Act subject to the provisions of paragraph (b) of this subsection and to the modification that for the words “the period by the special Act limited for the completion of the railway” there shall be substituted the words “the period of three years from the commencement of the construction of any of the works authorised by the special Act”.

(b) In the construction of the provisions of the Railways Clauses Consolidation Act 1845 incorporated with this Act—

“the company” shall mean the Council;

“the railway” shall mean the works authorised by section 15 (Power to construct works) of this Act; and

“the centre of the railway” shall mean the centre of any such works respectively.

PART II

LANDS

5.—(1) Subject to the provisions of this Act, the Council may enter upon, take and use such of the lands delineated on the deposited plan and described in the deposited book of reference as may be required for the purposes of the works or any purpose connected therewith, and for the purposes of recoupment, reinstatement or exchange, and for other purposes of this Act or for any of those purposes. Power to acquire lands.

(2) The powers of the Council for the compulsory acquisition of land under this section shall cease after the expiration of three years from 31st December, 1971:

Provided that the Secretary of State may by order from time to time extend the period for the exercise of the powers of the Council for the compulsory acquisition of land under this section.

(3) An order made under subsection (2) of this section shall be subject to special parliamentary procedure.

6. If the Secretary of State by order made under subsection (2) of the last foregoing section extends the period for the exercise of the powers of the Council for the compulsory acquisition of land, the following provisions shall apply after the coming into operation of that order :— Power to owners and lessees to give notice as to purchase of land.

(1) In this section—

“ the land ” means any land which is for the time being authorised to be acquired compulsorily under the last foregoing section;

“ lessee ” means a lessee under a lease having a period of not less than twenty-one years to run at the date of his notice under paragraph (2) of this section:

(2) If any person being the owner or lessee of any of the land shall give notice to the Council of his desire that his interest in any part of the land specified in the notice shall be acquired as soon as may be, the Council shall within a period of three months after the receipt of such notice—

(a) enter into a contract with such person for the acquisition of his interest in the land or in such part thereof as may be specified in the contract; or

(b) serve a notice to treat for the compulsory acquisition of the interest of such person in the land specified in his notice or in such part thereof as may be required by the Council; or

PART II
—cont.

(c) serve on such person notice of their intention not to proceed with the purchase of the interest of such person in the land specified in his notice:

(3) Where notice is given under the last foregoing paragraph by an owner or lessee of the land specified in the notice then—

(a) if the Council—

(i) fail to comply with that paragraph; or

(ii) withdraw in pursuance of any statutory provision a notice to treat served on him in compliance with sub-paragraph (b) of that paragraph; or

(iii) serve notice on him in compliance with sub-paragraph (c) of that paragraph;

the powers conferred by this Act for the compulsory acquisition of his interest in the land so specified shall cease;

(b) if his interest in part only of the land so specified is acquired in pursuance of a contract or notice to treat under sub-paragraph (a) or (b) of that paragraph the powers conferred by this Act for the compulsory acquisition of his interest in the remainder of the land so specified shall cease.

Correction
of errors in
deposited
plan and
book of
reference.

7.—(1) If the deposited plan or the deposited book of reference are inaccurate in their description of any land, or in their statement or description of the ownership or occupation of any land, the Council, after giving not less than ten days' notice to the owner, lessee and occupier of the land in question, may apply to two justices having jurisdiction in the county for the correction thereof.

(2) If, on any such application, it appears to the justices that the misstatement or wrong description arose from mistake, the justices shall certify the fact accordingly and shall in their certificate state in what respect any matter is misstated or wrongly described.

(3) The certificate shall be deposited in the office of the Clerk of the Parliaments, and a copy thereof in the Private Bill Office of the House of Commons and with the county clerk and with every clerk of a local authority with whom a copy of the deposited plan, or so much thereof as includes the land to which the certificate relates, has been deposited in accordance with the standing orders of the Houses of Parliament, or who has the custody of any such copy so deposited; and thereupon the deposited plan and the deposited book of reference shall be

deemed to be corrected according to the certificate, and it shall be lawful for the Council to take the land and execute the works in accordance with the certificate.

PART II
—cont.

(4) A person with whom a copy of a certificate is deposited under this section shall keep it with the other documents to which it relates.

8.—(1) Where a copy of this section is endorsed on, or annexed to, a notice to treat served under the Act of 1965, as applied by this Act, the following provisions of this section shall apply to the land subject to the notice instead of section 8 (1) of that Act.

Acquisition of
part only
of certain
properties.

(2) Where the land subject to the notice is part only of a house, building or factory, or part only of land consisting of a house, together with any park or garden belonging thereto, then, if the person on whom the notice is served, within twenty-one days after the day on which the notice is served on him, serves on the Council a counter-notice objecting to the sale of the part and stating that he is willing and able to sell the whole (hereinafter in this section referred to as "the land subject to the counter-notice"), the question whether he shall be required to sell the part shall, unless the Council agree to take the land subject to the counter-notice, be referred to the tribunal.

(3) If the said person does not serve such a counter-notice as aforesaid within twenty-one days after the day on which the notice to treat is served on him, or if on such a reference to the tribunal the tribunal determine that the part subject to the notice to treat can be taken without material detriment to the remainder of the land subject to the counter-notice, or, in the case of part of land consisting of a house together with a park or garden belonging thereto, without material detriment to the remainder of the land subject to the counter-notice and without seriously affecting the amenity and convenience of the house, the said person shall be required to sell the part.

(4) If on such a reference to the tribunal the tribunal determine that part only of the land subject to the notice to treat can be taken without material detriment to the remainder of the land subject to the counter-notice, or, as the case may be, without material detriment to the remainder of the land subject to the counter-notice and without seriously affecting the amenity and convenience of the house, the notice to treat shall be deemed to be a notice to treat for that part.

(5) If on such a reference to the tribunal the tribunal determine that the land subject to the notice to treat cannot be taken without material detriment to the remainder of the land subject to the counter-notice but that the material detriment is confined to a

PART II
—cont.

part of the land subject to the counter-notice, the notice to treat shall be deemed to be a notice to treat for the land to which the material detriment is confined in addition to the land already subject to the notice, whether or not the additional land is land which the Council are authorised to acquire compulsorily under this Act.

(6) If the Council agree to take the land subject to the counter-notice, or if the tribunal determine that—

- (a) none of the land subject to the notice to treat can be taken without material detriment to the remainder of the land subject to the counter-notice or, as the case may be, without material detriment to the remainder of the land subject to the counter-notice and without seriously affecting the amenity and convenience of the house; and
- (b) the material detriment is not confined to a part of the land subject to the counter-notice;

the notice to treat shall be deemed to be a notice to treat for the land subject to the counter-notice whether or not the whole of that land is land which the Council are authorised to acquire compulsorily under this Act.

(7) In any case where, by virtue of a determination by the tribunal under subsection (4), (5) or (6) of this section, a notice to treat is deemed to be a notice to treat for part of the land specified in the notice or for more land than is specified in the notice, the Council may, within six weeks after the tribunal make their determination, withdraw the notice to treat, and if they do so shall pay to the said person compensation for any loss or expense occasioned to him by the giving and withdrawal of the notice, to be determined in default of agreement by the tribunal.

(8) Where a person is under this section required to sell part only of a house, building or factory, or of land consisting of a house together with any park or garden belonging thereto, the Council shall pay him compensation for any loss sustained by him due to the severance of that part in addition to the value of his interest therein.

Extinction
of private
rights of way.

9.—(1) All private rights of way over any land that may be acquired compulsorily under this Act shall be extinguished on the acquisition of the land whether compulsorily or by agreement or on entry on the land in pursuance of section 11 (1) of the Act of 1965 as applied by this Act, whichever is sooner.

(2) Any person who suffers loss by the extinguishment of any right under this section, shall be entitled to be paid by the Council compensation to be determined in case of dispute under and in accordance with the Land Compensation Act 1961.

PART II
—cont.

1961 c. 33.

10.—(1) The Council may, instead of acquiring any land that they are authorised to acquire compulsorily under this Act, acquire compulsorily such easements and rights over or in the land as they may require for the purpose of constructing, using, maintaining, renewing or removing the works or for the purpose of obtaining access to the works or for the purpose of doing any other thing necessary in connection with the works.

Power to
acquire
easements
only.

(2) Accordingly the Council may give notice to treat in respect of any such easement or right describing the nature thereof; and "land" in the Act of 1965 as applied by this Act includes such easements and rights as aforesaid.

(3) Where the Council have acquired an easement or right only over or in any land under this section—

(a) they shall not be required or, except by agreement or during the execution of the works, entitled to fence off or sever that land from the adjoining land;

(b) the owner or occupier of the land for the time being shall, subject to the easement or right, have the same right to use the land as if this section had not been enacted.

(4) If in his particulars of claim the owner of any land in respect of which notice to treat for an easement or right is given under this section requires the Council to acquire the land, the Council shall not be entitled under this section to acquire the easement or right unless the tribunal determines that the easement or right can be granted without material detriment to the land or, in the case of a park or garden belonging to a house, without seriously affecting the amenity or convenience of the house; and if the tribunal does not so determine the Council may acquire the land compulsorily notwithstanding that the period mentioned in subsection (2) of section 5 (Power to acquire lands) of this Act has expired but not later than one year after the determination of the tribunal:

Provided that nothing in this subsection shall apply to land forming part of a street.

(5) A notice to treat given under this section shall be endorsed with notice of the effect of subsection (4) of this section.

PART II
—*cont.*Grant of
easements by
persons under
disability.

11.—(1) Any person empowered by the Act of 1965 as applied by this Act to sell and convey or release lands may if he thinks fit, subject to the provisions of the Act of 1965, grant to the Council any easement or right required for the purposes of this Act, over or in the lands not being an easement or right of water in which some person other than the grantor has an interest.

(2) The provisions of the Act of 1965 with respect to lands and rentcharges so far as they are applicable shall extend and apply to any such grant and to any such easement or right as aforesaid.

Provision of
substituted
sites.

12. The power of the Council to purchase land by agreement shall include power to purchase land by agreement for the purpose of providing substituted sites or facilities for the owners, lessees and occupiers of land that may be acquired under any enactment.

Power to
reinstate
owners or
occupiers of
property.

13.—(1) The Council may enter into and carry into effect an agreement or arrangement with the owner or occupier of any land acquired or to be acquired under this Act with respect to his reinstatement.

(2) Any such agreement may provide for the exchange of land; and for that purpose the Council may pay or receive money for equality of exchange.

Agreements
with
adjoining
owners.

14.—(1) The Council may enter into and carry into effect agreements with any person being the owner of, or interested in, any land abutting on any portion either of the works or of land that may be acquired under this Act with respect to the sale by the Council to him of any land, including any part of a street appropriated by the Council under this Act and not required for the works.

(2) The Council may accept as satisfaction of the whole or any part of the consideration for any such sale the grant by the purchaser of any land required by the Council for the purposes of this Act or any easement or right so required.

PART III

WORKS

Power to
construct
works.

15.—(1) Subject to the provisions of this Act, the Council may make and maintain, in the lines shown on the deposited plan and according to the levels shown on the deposited sections, the works in the urban district of Newhaven in the county referred to in this section, that is to say:—

Work No. 1 A new road including a swing bridge with an opening central span over the river, commencing by a

junction with Bridge Street at a point 150 yards east of the junction of Bridge Street with High Street and terminating by a junction with the road from Newhaven to Eastbourne (A.259) at a point immediately to the west of the level crossing whereby the said road is crossed by the railway between Lewes and Seaford;

Work No. 2 A new road commencing by a junction with the unmade road not maintainable at public expense known as Riverside at a point 107 yards east of the junction of Riverside with High Street and terminating by a junction with Work No. 1 at a point 60 yards north of the commencement of Work No. 1;

Work No. 3 A new road commencing by a junction with Bridge Street at a point 14 yards east of the commencement of Work No. 1 and terminating by a junction with Work No. 1 at a point 12 yards east of the termination of Work No. 2;

Work No. 4 A new road commencing by a junction with Work No. 1 at a point 28 yards west of the termination of Work No. 1 and terminating by a junction with North Quay at a point 93 yards north of the commencement of the said new road;

Work No. 5 A new road commencing by a junction with Work No. 1 at a point 87 yards west of the termination of Work No. 1 and terminating at the existing entrance for vehicular traffic to the Newhaven Ferry Terminal of the board ;

together with all such approaches, roundabouts, tunnels, stairs, footpaths, passages, means of ingress or egress, shafts, stagings, buildings, apparatus, plant, machinery and subsidiary and incidental works as may be necessary or convenient.

(2) In the construction of the bridge—

(a) the width of the opening between any fenders around the piers in the river carrying the opening central span of the bridge shall be not less than 60 feet;

(b) the bridge between the said piers shall be constructed so as to leave a headway thereunder of not less than 4 feet above the level of mean high-water springs;

(3) The Council shall erect a good and sufficient fence on each side of the bridge.

PART III
—cont.

(4) Subject to the provisions of this Act the Council may widen, improve, renew, extend or replace the bridge at any time and from time to time as occasion may require.

Power to
deviate.

16. Subject to the provisions of subsection (2) of section 15 (Power to construct works) of this Act the Council in constructing the works may deviate from the lines thereof shown on the deposited plan to any extent not exceeding the limits of deviation shown on that plan and may deviate from the levels shown on the deposited sections to any extent not exceeding 10 feet either upwards or downwards.

Power to
construct
bridges, etc.,
and to
execute
temporary
works on
railways.

17. Subject to the provisions of this Act the Council may for the purposes of or in connection with the works and within the limits of deviation shown on the deposited plan construct and execute all such bridges, arches, piers, viaducts, embankments, tunnels, abutments, wing walls and other works as they may deem necessary or expedient for carrying the works over or under any railway or watercourse or any land, and may for the purpose of, and during the execution of the works over or under any railway, erect, place or execute and maintain upon, over or under such railway all such temporary structures, erections, works, apparatus and appliances as may be necessary or convenient and as will not prevent the safe use of such railway or interfere to any greater extent than is reasonably necessary with the traffic thereon.

As to
construction
of works.

18. The Council may with the approval of the Secretary of State after they have acquired the necessary lands or sufficient rights therein, and subject to the provisions of this Act, construct the works in situations, at levels and of dimensions other than the situations, levels and dimensions shown on the deposited plan and sections:

Provided that nothing in this subsection shall authorise the Council to construct the bridge with an opening span of less width or headway of less height than the width and height shown on the deposited plan and sections or otherwise than in accordance with the provisions of subsection (2) of section 15. (Power to construct works) of this Act.

Power to
make
subsidiary
works.

19.—(1) Within the limits of deviation shown on the deposited plan, the Council in connection with and as part of the works may execute or do any of the following works or things:—

- (a) make junctions and communications with any existing streets (whether or not they are dedicated to the public

use or maintainable at public expense) intersected or interfered with by, or contiguous with, the works and divert, widen or alter the line, or alter the level of any such existing street for the purpose of connecting the same with the works ;

- (b) provide bridges over and subways under the approach roads ;
- (c) execute any works for the protection of any adjoining land or buildings ;
- (d) execute any works and do anything necessary for the strengthening and supporting of any walls of adjoining buildings ;
- (e) alter or remove any monument, drinking trough, lamp-post, refuge, railings, cesspool or other structure erected upon any street or land and plant trees, shrubs or other vegetation ; and
- (f) raise, sink or otherwise alter the position of any of the steps, areas, cellars, windows and pipes or spouts belonging to any house or building, and remove all other obstructions so that the same be done with as little delay and inconvenience to the inhabitants as the circumstances of the case will admit ;

and shall make compensation for any damage done by them in exercise of the powers of this section.

(2) Any question of disputed compensation payable under the provisions of this section shall be determined under and in accordance with the Land Compensation Act, 1961.

1961 c. 33.

20.—(1) The Council in connection with and at or near any of the works—

Subsidiary
works in
river or
elsewhere.

- (a) may execute, place and keep in the river and elsewhere, either permanently or temporarily, all such caissons, cofferdams, piles, piers, abutments, embankments, approaches, ways, access works, pumping works, wharves, walls, fences, drains, sewers, tunnels, fenders, mooring posts, bollards, booms, dolphins, pontoons, stagings, stairs, subways, buildings and other works and conveniences as they may find necessary or expedient for or in connection with the construction, maintenance or use of the works ;
- (b) during the construction of the bridge dredge any part of the river to such extent as may be necessary for the

PART III
—cont.

purpose of such construction and use, sell or otherwise dispose of or remove or deposit any materials taken up or collected by means of such dredging as they may think fit:

Provided that—

- (i) the Council shall ensure that any works executed or kept under the powers of this section shall not unnecessarily narrow or obstruct the navigable waterway of the river or otherwise unnecessarily interfere with or impede navigation or unnecessarily obstruct the flow of water or the passage of fish;
- (ii) no materials which have been excavated shall be deposited in any place below the level of mean high-water springs except in such a position and under such restrictions and regulations as may be fixed by the Secretary of State;
- (iii) no fixed temporary works shall be placed in the river under the powers of this section so as to reduce the navigable waterway of the river during the specified period to a width of less than 45 feet.

(2) On the completion of the bridge the Council shall remove all temporary works placed by them in the river under the powers of this section and shall at their own expense keep repaired any other works placed by them in the river under the powers of this section.

Underpinning
of houses
near works.

21. If, in the execution and maintenance of the works, it becomes necessary to underpin or otherwise strengthen any houses, buildings or structures within one hundred feet of the works the Council at their own costs and charges may, and if required by the owners or lessees of any such house or building shall, subject as hereinafter provided, underpin or otherwise strengthen the same and the following provisions shall have effect, that is to say:—

- (1) At least fourteen days' notice shall, except in case of emergency, be given to the owners, lessees and occupiers or by the owners or lessees of the house or building so intended or so required to be underpinned or otherwise strengthened:
- (2) Each such notice, if given by the Council, shall be served in manner prescribed by section 30 of the Act of 1965, and, if given by the owners or lessees of the premises to be underpinned or strengthened, shall be sent to the county clerk:

- (3) If any owner, lessee or occupier of any such house or building, or the Council, as the case may require, shall within seven days after the giving of such notice give a counter-notice that he or they, as the case may be, disputes or dispute the necessity of such underpinning or strengthening, the question of the necessity shall be referred to an arbitrator (in this section referred to as "the referee"):
- (4) The referee shall forthwith upon the application of either party proceed to inspect such house or building and determine the matter referred to him and, in the event of his deciding that—
- (a) such underpinning or strengthening is necessary, he may and, if so required by such owner, lessee or occupier shall, prescribe the mode in which the same shall be executed, and the Council may and shall proceed forthwith so to underpin or strengthen the said house, building or structure;
- (b) such underpinning or strengthening is not necessary, the Council shall not be under any obligation to underpin or strengthen the said house, building or structure:
- (5) The Council shall be liable to compensate the owners, lessees and occupiers of every such house or building for any loss or damage which may result to them by reason of the exercise of the powers granted by this section:
- (6) (a) In any case in which any house or building shall have been underpinned or strengthened under the powers of this section, the Council may, from time to time, after the completion of such underpinning or strengthening and during the execution of the work in connection with which such underpinning or strengthening was done or within twelve months after the completion of that work, enter upon and survey such house or building and do such further underpinning or strengthening thereof as they may deem necessary or expedient or as in case of dispute between the Council on the one hand and the owner, lessee or occupier of the house or building on the other hand shall be settled by arbitration;
- (b) If in any case in which any house or building shall have been underpinned or strengthened by the Council, such underpinning or strengthening shall prove inadequate for the support or protection of the house or

PART III
—cont.

building against further injury arising from the execution or maintenance of such work, then, and in every such case, unless such underpinning or strengthening shall have been done in the mode prescribed by the referee, at the requirement of the owner, lessee or occupier of such house or building, the Council shall make compensation to the owners, lessees and occupiers of such house or building for such injury:

- (7) Nothing in this section contained, nor any dealing with any property in pursuance of this section, shall relieve the Council from the liability to compensate under any enactment:
- (8) Every case of compensation to be ascertained under this section shall be ascertained according to the provisions of the Act of 1965.

Laying out
and repair of
carriageways
and footways.

22. The Council may lay out the works and any land acquired by them for the purposes of the works under the powers of this Act or any part thereof for carriageways and for footways as they may think proper and may sewer, level, pave, metal, flag, channel and complete such carriageways and footways and may, from time to time, execute all such works and do all such acts in, under or upon any of the carriageways and footways forming part of the works as they may, from time to time, think proper for preserving or improving the works and may for that purpose enter upon and break open the soil and pavement of such carriageways and footways and any sewers, drains or tunnels within or under the same causing as little inconvenience as may be in the execution of the powers hereby conferred and restoring the said carriageways, footways, sewers, drains or tunnels as nearly as practicable to the same condition as they were in before such breaking open.

Lighting of
works.

23. Subject to the provisions of this Part of this Act the Council may light the works and may enter into and carry into effect any agreement with any other body or person with respect to lighting the same or any of them.

Power to
sell materials.

24. The Council may sell or dispose of all matters or things excavated or obtained in the construction of the works and all building and other materials of any houses, buildings or structures acquired by them under the powers of this Act and not required for the purposes of this Act and also all matters or things in, under or upon any street or other place altered by them for the purposes of this Act and any matters or things obtained in the alteration of or interference with any drain or sewer under the powers of this Act:

Provided that—

PART III
—cont.

- (1) the Council shall not under the powers of this section sell or dispose of any matter or thing if any person other than the Council proves to the satisfaction of the Council that he is the owner thereof;
- (2) if any person after such sale proves to the satisfaction of the Council that he was the owner of the matter or thing so sold the Council shall pay the proceeds to him.

25.—(1) When the works or any part thereof are or is completed a certificate thereof shall be issued under the seal of the Council and any copy of such certificate certified under the hand of the county clerk shall in all proceedings and for all purposes be admissible and received as evidence that such certificate has been duly made and from the date of such certificate so much of the works to which such certificate relates shall become for the purposes of the Highways Act 1959 a highway maintainable at the public expense.

Works to
form main-
tainable
highways.

(2) Subject to the provisions of the Highways Act 1959 the Council shall be the highway authority for the works.

(3) The provisions of section 45 of the Highways Act 1959 shall not apply to any road constructed as part of any of the works.

26.—(1) The Council may stop up the whole or such portion or portions as they think fit of so much of the principal county road from Brighton to Eastbourne (A.259) in the urban district of Newhaven as lies between the junction of that road with Riverside and a point 88 yards east of the said junction, and thereupon all rights of way over or along the same shall be extinguished and the Council may appropriate and use the site thereof.

Stopping up
of streets.

(2) No portion of the said road shall be stopped up under the powers of this section until Work No. 1 is completed and opened for public use.

27. During and for the purpose of the execution of the works and for the purposes of facilitating the movement of vehicular traffic along the route of Work No. 1 and for securing the safety of the public or otherwise, the Council may from time to time at or in the vicinity of the junction of any street with the works erect and maintain or remove—

Power to
prevent access
to or from
Work No. 1.

- (i) barriers for the prevention or limitation of access by vehicular or pedestrian traffic to or from that work from or to any such street;
- (ii) notices prohibiting or limiting such access.

PART III
—cont.Temporary
stoppage of
highways.

28.—(1) The Council during and for the purpose of the execution of the works may temporarily stop up and divert and interfere with any highway and may for any reasonable time divert the traffic therefrom and prevent persons using the same.

(2) The Council shall not exercise the powers of this section—

- (a) as respects any trunk road without the consent of the Secretary of State; or
- (b) as respects any other road without the consent of the highway authority, but such consent shall not be unreasonably withheld and any question whether such consent is or is not unreasonably withheld shall be determined by the Secretary of State; or
- (c) so as to deprive foot-passengers with or without animals bona fide going to or from any building or land abutting on the highway of reasonable access to the building or land; or
- (d) as respects any highway upon which a service of stage carriages or express carriages is operated unless not less than forty-eight hours' previous notice is given to the traffic commissioners and to the holders of the road service licence under which that service is authorised.

No mains or
pipes to be
laid in
bridge.
1950 c. 39.

29. Notwithstanding anything contained in the Public Utilities Street Works Act 1950 or in any other enactment, no person shall be entitled to enter upon, break up or interfere with the bridge or the carriageways and footways of the same for the purpose of laying down any main, pipe or wire or executing any work therein, thereon or thereunder except with the consent of the Council and in accordance with such terms and conditions as the Council may determine.

Operation of
bridge.

30.—(1) The operation of the opening central span of the bridge for the purpose of permitting the passage of vessels in the river shall be controlled by the board:

Provided that, except as may be otherwise agreed from time to time between the Council and the board—

- (a) the said span shall not be open except during the specified period; and
- (b) the said span shall be kept closed during the specified period except so long as is necessary to permit the passage of vessels in the river.

(2) The Council shall repay to the board the expenses reasonably incurred by the board in, or in connection with, the operation of the bridge in accordance with the provisions of this section.

31.—(1) A tidal work shall not be constructed, widened, improved, renewed, extended, or replaced except in accordance with plans and sections approved by the Secretary of State and subject to any conditions and restrictions imposed by the Secretary of State before the work is begun.

PART III
—cont.

Tidal works
not to be
executed
without
approval of
Secretary of
State.

(2) If a tidal work is constructed, widened, improved, renewed, extended or replaced in contravention of this section or of any condition or restriction imposed under this section—

(a) the Secretary of State may by notice in writing require the Council at their own expense to remove the tidal work or any part thereof and restore the site thereof to its former condition; and if, on the expiration of thirty days from the date when the notice is served upon the Council they have failed to comply with the requirements of the notice, the Secretary of State may execute the works specified in the notice; or

(b) if it appears to the Secretary of State urgently necessary so to do, he may himself remove the tidal work or part of it and restore the site to its former condition;

and any expenditure incurred by the Secretary of State in so doing shall be recoverable from the Council as a simple contract debt.

32.—(1) In case of injury to or destruction or decay of a tidal work or any part thereof, the Council shall forthwith notify the board and shall lay down such buoys, exhibit such lights and take such other steps for preventing danger to navigation as the board shall from time to time direct.

Provision
against
danger to
navigation.

(2) If the Council fail to notify the board as required by this section or to comply in any respect with a direction given under this section they shall be liable on summary conviction to a fine not exceeding one hundred pounds and on conviction on indictment to a fine.

33.—(1) Where a tidal work is abandoned, or suffered to fall into decay, the Secretary of State may by notice in writing require the Council at their own expense either to repair and restore the work or any part thereof, or to remove the work and restore the site thereof to its former condition, to such an extent and within such limits as the Secretary of State thinks proper.

Abatement
of works
abandoned
or decayed.

(2) Where a work authorised by this Act, and consisting partly of a tidal work and partly of works on or over land above the level of high water, is abandoned or suffered to fall into decay and that part of the work on or over land above the level of high water is in such condition as to interfere or to cause reasonable

PART III
—*cont.*

apprehension that it may interfere with the right of navigation or other public rights over the foreshore, the Secretary of State may include that part of the work, or any portion thereof, in any notice under this section.

(3) If, on the expiration of thirty days from the date when a notice under this section is served upon the Council, they have failed to comply with the requirements of the notice, the Secretary of State may execute the works specified in the notice and any expenditure incurred by him in so doing shall be recoverable from the Council as a simple contract debt.

Survey of
tidal works.

34. The Secretary of State may at any time, if he deems it expedient, order a survey and examination of a tidal work constructed by the Council, or of the site upon which it is proposed to construct the work, and any expenditure incurred by the Secretary of State in any such survey and examination shall be recoverable from the Council as a simple contract debt.

Permanent
lights on
tidal works.

35.—(1) After the completion of a tidal work, the Council shall at the outer extremity thereof exhibit every night from sunset to sunrise such lights, if any, and take such other steps for the prevention of danger to navigation as the board shall from time to time direct.

(2) If the Council fail to comply in any respect with a direction given under this section, they shall be liable on summary conviction to a fine not exceeding one hundred pounds and on conviction on indictment to a fine.

Lights on
tidal works
during
construction.

36.—(1) The Council shall at or near a tidal work during the whole time of the construction, widening, improvement, renewal, extension or replacement thereof exhibit every night from sunset to sunrise such lights, if any, and take such other steps for the prevention of danger to navigation as the Secretary of State shall from time to time direct.

(2) If the Council fail to comply in any respect with a direction given under this section they shall be liable on summary conviction to a fine not exceeding one hundred pounds and on conviction on indictment to a fine.

As to
removal of
existing
bridge.

37.—(1) As soon as reasonably practicable after the bridge is opened for public traffic, the board shall take down and remove to the satisfaction of the Secretary of State the existing bridge, including such of the foundations, abutments and timber protective works in the river as the Secretary of State may direct, and shall ensure so far as practicable that such taking down and removal shall not unnecessarily obstruct the navigable waterway of the river, or otherwise interfere with or impede navigation:

Provided that no fixed temporary works shall be placed in the river in connection with the taking down and removal of the existing bridge so as to reduce the navigable waterway of the river during the specified period to a width of less than 49 feet.

PART III
—cont.

(2) The provisions of section 36 (Lights on tidal works during construction) of this Act shall apply to the taking down and removal of the existing bridge as if the existing bridge were a tidal work, as if such taking down and removal were referred to in the said section 36 in addition to the construction, widening, improvement, renewal, extension or replacement of a tidal work, and as if for references in the said section 36 to the Council there were substituted references to the board.

(3) The board may sell the structure and materials of the existing bridge and apply the proceeds for any purpose for which capital money may properly be applied.

38. Nothing contained in this Part of this Act shall prejudice or derogate from the powers, rights and privileges of the Trinity House. Saving for
Trinity
House.

39. Nothing contained in this Part of this Act shall prejudice or derogate from the powers, rights and privileges of the board as harbour authority. Saving for
the board.

PART IV

FINANCE AND GENERAL

40.—(1) The Council may borrow without the consent of any sanctioning authority for any of the purposes specified in the first column of the following table the sums specified in relation thereto in the second column of that table. Power to
borrow.

(2) The period for the repayment of a sum borrowed under the preceding subsection shall not exceed the period specified in relation thereto in the third column of the said table.

(3) Subject to the provisions of this section Part IX of the Local Government Act 1933 shall have effect as if money borrowed under this section were borrowed under that Part. 1933 c. 51

(4) It shall not be lawful to exercise the powers of borrowing conferred by this section (other than the power of borrowing to pay the costs, charges and expenses of this Act) except in compliance with any order for the time being in force under section 1 of the Borrowing (Control and Guarantees) Act 1946. 1946 c. 58.

PART IV
—cont.

(1) Purpose	(2) Amount	(3) Period for repayment calculated from the date or dates of borrowing.
(a) The purchase of land, easements and rights under the powers of this Act and the payment of compensation under the provisions of this Act	The sum requisite	Sixty years.
(b) The construction of the bridge and other bridge works comprised in Work No. 1	£407,250	Fifty years.
(c) The construction of the works (except the bridge and other bridge works comprised in Work No. 1)	£96,000	Thirty years.
(d) The making of trial borings required in connection with the works	£756	Fifty years.
(e) The provision of housing accommodation for rehousing persons displaced, and the provision of buildings in connection with the relocation of population	The sum requisite	Sixty years.
(f) The costs, charges and expenses of this Act	The sum requisite	Five years.

Application
of general
provisions of
Public Health
Act 1936.
1936 c. 49.
Crown rights.

41. The sections of the Public Health Act 1936 mentioned in the Schedule to this Act shall have effect as if references therein to that Act included a reference to this Act.

42. Nothing in this Act shall affect prejudicially any estate, right, power, privilege or exemption of the Crown and, in particular and without prejudice to the generality of the foregoing, nothing herein contained shall authorise the Council to take, use or in any manner interfere with, any portion of the shore or bed of the sea or of any river, channel, creek, bay or estuary or any land, hereditaments, subjects or rights of whatsoever description belonging to Her Majesty in right of Her Crown and under the management of the Crown Estate Commissioners without the consent in writing of those commissioners on behalf of Her Majesty first had and obtained for that purpose.

For
protection
of
Post Office.

43. For the protection of the Post Office the following provisions shall, unless otherwise agreed in writing between the Council and the Post Office, apply and have effect:—

- (1) (a) No materials which have been excavated pursuant to paragraph (b) of subsection (1) of section 20 (Subsidiary

works in river or elsewhere) of this Act shall be laid down or deposited in any place or manner so as to cover any subaqueous cable belonging to or used by the Post Office or to impede in any way the inspection, maintenance, removal or renewal of any such cable;

(b) As early as possible and in any event not less than twenty-eight days before any exercise of their powers under the said section 20 within a distance of 50 yards of any subaqueous cable belonging to or used by the Post Office, the Council shall give notice in writing to the Post Office of such intended exercise:

(2) Notwithstanding any prohibition or restriction on the use of a road or street or part of a road or street imposed under the powers conferred on the Council by section 27 (Power to prevent access to or from Work No. 1) or section 28 (Temporary stoppage of highways) of this Act the Post Office shall be at liberty at all times to enter upon the said road or street or any part thereof with any necessary vehicles for the purpose of—

(a) maintaining, inspecting, repairing, renewing or removing any telegraphic line belonging to or used by them; or

(b) placing a telegraphic line;

and the Council shall at all times afford to the Post Office such entry for any of the aforesaid purposes:

(3) The exercise of the powers conferred by the said section 28 in relation to a street or highway shall not affect the powers of the Post Office under the Telegraph Acts 1863 to 1916 to place, maintain, inspect, repair, renew or remove telegraphic lines or to open or break up that street or highway for any of those purposes.

44. For the protection of the board, the following provisions shall, notwithstanding the provisions of section 17 (Power to construct bridges, etc., and to execute temporary works on railways) of this Act, unless otherwise agreed in writing between the Council and the board, apply and have effect:—

(1) In this section—

“railway property” means any railway or dock of the board and any works connected therewith for the maintenance or operation of which the board are responsible, and includes any lands held or used by the board for the purposes of such railway, dock or works;

“the specified works” means so much of the works as may be situated upon, across, under or over or within 50 feet of railway property, and includes

PART IV
—cont.

the construction, maintenance and renewal of such works but does not include the maintenance and renewal of road works;

“ the engineer ” means an engineer to be appointed by the board:

- (2) (a) The Council shall not under the powers of this Act acquire permanently from the board any railway property except property required as the permanent site of the specified works but they may acquire such temporary easements and rights in railway property as they may reasonably require for the construction of the specified works and a permanent easement over Newhaven Harbour for Work No. 1;
- (b) The board shall retain easements for any pipes or cables laid in land to be acquired by the Council and shall where reasonably necessary have the right at the Council's expense to divert or alter such pipes or cables where the same are affected by the specified works:
- (3) (a) In the exercise of their powers under section 20 (Subsidiary works in river or elsewhere) of this Act the Council shall not deposit materials which have been excavated or dredged so as to increase the work of dredging at present carried out by the board;
- (b) The Council shall not without prior consultation with the board exercise their powers under section 27 (Power to prevent access to or from Work No. 1) or section 28 (Temporary stoppage of highways) of this Act so as to obstruct or limit access to or egress from any premises of the board:
- (4) The Council shall before commencing the specified works or any part thereof (other than works of maintenance or repair) furnish to the board proper and sufficient plans thereof for the reasonable approval of the engineer, and shall not commence the specified works or such part, as the case may be, until plans thereof have been approved in writing by the engineer or settled by arbitration:
- Provided that if within twenty-eight days after such plans have been furnished to the board the engineer shall not have intimated his disapproval thereof and the specific grounds of his disapproval, he shall be deemed to have approved the same:
- (5) Upon signifying his approval or disapproval of the said plans, the engineer may specify any protective works, whether temporary or permanent, which in his opinion should be carried out on property of the board before the commencement of the specified works in order reasonably to ensure the safety or stability of railway

property and such protective works as may be reasonably necessary for those purposes shall be constructed by the Council or by the board, if the board so elect, with all reasonable dispatch, and the Council shall not commence the construction of the specified works until the engineer shall have notified the board that the protective works have been completed:

PART IV
—cont.

Provided that in the event of the board not constructing or completing such protective works as they have elected to construct with reasonable dispatch, the Council may after giving seven days' notice to the engineer themselves construct or complete such works, and on the completion thereof may commence the construction of the specified works:

- (6) The Council shall give to the engineer twenty-eight days' notice of their intention to commence the construction of the specified works and except in emergency (when they shall give such notice as may be reasonably practicable) also of their intention to carry out any works for the repair or maintenance of the specified works:
- (7) The specified works shall, when commenced, be carried out with all reasonable dispatch in accordance with the plans approved or deemed to have been approved or settled as aforesaid and under the supervision (if given) and to the reasonable satisfaction of the engineer and in such manner as to cause as little damage to railway property as may be, and so far as is reasonably practicable so as not to interfere with or obstruct the free, uninterrupted and safe user of the railway or the traffic thereon or Newhaven Harbour and the use by passengers of railway property, and if any damage to railway property or any such interference or obstruction shall be caused or take place by reason of the specified works, the Council shall notwithstanding any such approval as aforesaid forthwith make good such damage and shall pay to the board all reasonable expenses to which they may be put, and reasonable compensation for any loss which they may sustain by reason of any such damage, interference or obstruction other than damage, interference or obstruction caused by the neglect or default of the board, their servants or agents.
- (8) In the exercise of the powers of section 20 (Subsidiary works in river or elsewhere) of this Act, the Council shall ensure that no damage is caused to the board's property and that access by water to any quay within Newhaven Harbour is not restricted, impaired or interfered with except so far as may be reasonably necessary during the construction of Work No. 1:

PART IV
—cont.

- (9) The Council shall at all times afford reasonable facilities to the engineer for access to the specified works during their construction and shall supply him with all such information as he may reasonably require with regard to the specified works or the method of construction thereof:
- (10) The board shall at all times afford reasonable facilities to the Council and their agents for access to any specified works carried out by the board under this section during their construction, and shall supply the Council with such information as they may reasonably require with regard to such works or the method of construction thereof:
- (11) If any alterations or additions, either permanent or temporary, to railway property shall be reasonably necessary during the construction of the specified works or during the period of twelve months after completion thereof in consequence of the construction of the specified works, such alterations and additions may be effected by the board after not less than twenty-eight days' notice (or in case of emergency, such notice as may be reasonably practicable) has been given to the Council, and the Council shall pay to the board the reasonable cost thereof, including in respect of permanent alterations and additions a capitalised sum representing the increased or additional cost of maintaining, working and, when necessary, renewing any such alterations or additions:

Provided that if the cost of maintaining, working or renewing railway property is reduced in consequence of any such alterations or additions, a capitalised sum, representing such saving, may be set off against any sum payable by the Council to the board under this section:

- (12) The Council shall repay to the board all costs, charges and expenses reasonably incurred by the board—

(a) in constructing any protective works under the provisions of paragraph (5) of this section, including in respect of any permanent protective works a capitalised sum representing the increased or additional cost of maintaining and renewing such works:

Provided that if the cost of maintaining, working or renewing railway property is reduced in consequence of such protective works, a capitalised sum representing such saving may be set off against any sum payable by the Council to the board under this section;

(b) in respect of the employment of any inspectors, signalmen, watchmen and other persons whom it shall be reasonably necessary to appoint for inspecting, watching, lighting and signalling railway property and for preventing as far as may be all interference, obstruction, danger or accident arising from the construction, maintenance, repair or failure of the specified works;

(c) in respect of any special traffic working of the board's trains resulting from any speed restrictions which are necessary as a result of the construction, maintenance, repair or failure of the specified works and which may in the opinion of the engineer be required to be imposed or from the substitution or diversion of train services which may be necessary for the same reason;

(d) in respect of any additional temporary lighting of railway property in the vicinity of the works, being lighting made reasonably necessary as a result of the specified works or the failure thereof:

- (13) If at any time after the completion of the specified works not being works vested in the board the board shall give notice to the Council informing them that the state of repair of the specified works appears to be such as to affect prejudicially railway property, the Council shall, within twenty-eight days of the receipt of such notice, take such steps (if any) as may be reasonably necessary to put the specified works in such state of repair as not to affect prejudicially railway property and, if and whenever the Council fail to do so, the board may make and do in and upon the lands of the board or of the Council all such works and things as shall be requisite to put the specified works in such state of repair as aforesaid and the costs and expenses reasonably incurred by the board in doing such works as were reasonably necessary for such purpose shall be repaid to them by the Council:
- (14) All temporary structures, erections, works, apparatus and appliances erected or placed by the Council under the powers of section 17 (Power to construct bridges, etc., and to execute temporary works on railways) of this Act upon, over or under any railway of the board shall as soon as reasonably practicable be removed by the Council to the reasonable satisfaction of the engineer and in such a way as to cause as little damage to railway property and as little interference with, or interruption to, the traffic on the railways of the board as may be and if any damage to.

PART IV
—cont.

railway property or such interference, delay or interruption shall be caused by any such failure to remove any such temporary structures, erections, works, apparatus or appliances the Council shall forthwith make good such damage and pay to the board the reasonable costs and expenses to which they may be put and reasonable compensation for any loss which they may sustain by reason of such damage, interference, delay or interruption:

- (15) Before providing any illumination or illuminated road traffic sign on or in connection with the specified works or in the vicinity of railway property the Council shall consult with the board and comply with any reasonable requirements of the board in regard thereto with a view to ensuring that such illumination or illuminated sign could not be confused with any railway signal or other light used for controlling, directing or securing the safety of traffic on the railway, or any navigation light in Newhaven Harbour:
- (16) Any additional expense which the board may reasonably incur, after giving twenty-eight days' notice to the Council, in reconstructing or maintaining railway property in pursuance of any powers existing at the passing of this Act by reason of the existence of the works shall be repaid by the Council to the board:
- (17) The Council shall be responsible for and make good to the board all costs, charges, damages and expenses not otherwise provided for in this section which may be occasioned to or reasonably incurred by the board—
- (a) by reason of the specified works or the failure thereof; or
- (b) by reason of any act or omission of the Council or of any persons in their employ or of their contractors or others whilst engaged upon the specified works;

and the Council shall effectively indemnify and hold harmless the board from and against all claims and demands arising out of or in connection with the specified works or any such failure, act or omission as aforesaid and the fact that any act or thing may have been done by the board on behalf of the Council or in accordance with plans approved by the engineer shall not (if it was done without negligence on the part of the board or of any person in their employ or of their contractors or agents) excuse the Council from any liability under the provisions of this section:

Provided that the board shall give to the Council reasonable notice of any claim or demand as aforesaid and no settlement or compromise thereof shall be made without the prior consent of the Council:

PART IV
—cont.

- (18) Any difference arising between the Council and the board under this section (other than a difference as to the meaning or construction of this section) shall be referred to and settled by arbitration.

45. For the protection of the South Eastern Gas Board (in this section referred to as "the gas board") the following provisions shall, unless otherwise agreed in writing between the Council and the gas board, apply and have effect:—

For
protection
of South
Eastern
Gas Board.

- (1) In this section, unless the subject or context otherwise requires—

"the Act of 1950" means the Public Utilities Street Works Act 1950;

1950 c. 39.

"apparatus" means mains, pipes, valves, syphons, stopcocks or other works or apparatus belonging to, or maintained by, the gas board and includes any works constructed for the lodging therein of apparatus but does not include any main, pipe, valve, syphon, stopcock or other work or apparatus in the existing bridge;

"in" in a context referring to apparatus includes under, over, across, along or upon;

"position" includes depth;

"specified work" means any work carried out or thing done under the powers of section 15 (Power to construct works), section 17 (Power to construct bridges, etc., and to execute temporary works on railways), section 19 (Power to make subsidiary works), section 20 (Subsidiary works in river or elsewhere), section 21 (Underpinning of houses near works) and section 22 (Laying out and repair of carriageways and footways) of this Act:

- (2) Notwithstanding anything in this Act or shown on the deposited plan or contained in the deposited book of reference, the Council shall not, under the powers of this Act, acquire any apparatus otherwise than by agreement:
- (3) In relation to any of the specified works to which, apart from this section, the provisions of the code in Part II of, and Schedule 4 to, the Act of 1950 would not apply,

PART IV
—cont.

the said provisions shall apply as if the said works were mentioned in paragraph (a) of subsection (1) of section 21 of that Act and the undertakers' apparatus affected thereby was in a street:

Provided that for the purposes of such application the said provisions shall have effect—

(a) so as to impose on the Council an obligation to deliver, with the notice to be given to the statutory undertakers concerned under paragraph 2 of Schedule 4 to the Act of 1950 before commencing works to which this paragraph relates, plans, sections and particulars of the works to be commenced; and

(b) as if accordingly, in the case of works to which this paragraph relates, the words between parentheses in paragraph 3 of the said schedule relating to a road alteration were omitted:

- (4) Notwithstanding the permanent stopping up of any road or part of a road in which any apparatus is situate under the powers of section 26 (Stopping up of streets) of this Act, the gas board shall continue to have the same powers and rights in respect of the apparatus remaining in the land which by reason of the stopping up has ceased to be a road as they would have if it had remained a road, or the gas board may and, if reasonably required by the Council, shall—

(a) remove the apparatus and relay or replace it in such other position as the gas board may reasonably determine; or

(b) provide and lay or place in such other position as aforesaid other apparatus in place of the existing apparatus:

- (5) The Council shall repay to the gas board the reasonable expenses incurred by the gas board in, or in connection with, the carrying out of such works as are referred to in sub-paragraphs (a) and (b) of the last foregoing paragraph (whether or not the Council have required those works to be carried out), including expenses so incurred in cutting off any apparatus from any other apparatus and in doing any work rendered necessary in consequence of carrying out the said works:
- (6) In exercising the powers of the said section 26 the Council shall cause as little inconvenience in relation to access by the gas board to apparatus as the circumstances of the case will admit:

- (7) The temporary stopping up or diversion of the whole or any part of a highway under the powers of section 28 (Temporary stoppage of highways) of this Act shall not prejudice or affect any right of the gas board—

(a) to maintain, operate, inspect, repair, renew or remove any apparatus which at the time of the stopping up or diversion is in the highway or part thereof, as the case may be; or

(b) for the purpose of such maintenance, operation, inspection, repair, renewal or removal, to enter upon, break open or carry out works in that highway or part thereof, as the case may be:

- (8) If by reason or in consequence of the execution by the Council of the specified works any damage to any apparatus (other than apparatus the repair of which is not reasonably necessary in view of its intended removal or abandonment) or property of the gas board, or any interruption in the supply of gas shall be caused, the Council shall bear and pay the cost reasonably incurred by the gas board in making good such damage and shall—

(a) make reasonable compensation to the gas board for any loss sustained by them; and

(b) indemnify the gas board against all claims, demands, proceedings, costs, damages and expenses which may be made or taken against, or recovered from, or incurred by, the gas board;

by reason or in consequence of any such damage or interruption:

Provided that—

(i) nothing in this paragraph shall impose any liability on the Council with respect to any damage or interruption which may be attributable to the act, neglect or default of the gas board or their contactors or workmen;

(ii) the gas board shall give to the Council reasonable notice of any claim or demand as aforesaid and no settlement or compromise thereof shall be made without the prior consent of the Council:

- (9) The Council shall bear and pay any costs reasonably incurred by the gas board in the reasonable employment of watchmen and inspectors during the execution, under the powers of this Act, of any specified work which will or may interfere with, or affect, any apparatus:

PART IV
—cont.

(10) Any difference arising between the Council and the gas board under this section (other than a difference as to the meaning or construction of this section) shall be settled by arbitration:

(11) The provisions of this section shall have effect notwithstanding anything in the Act of 1950.

For
protection
of
Mid-Sussex
Water
Company.

46. For the protection of the company the provisions of this section shall, unless otherwise agreed in writing between the Council and the company, apply and have effect:—

(1) In this section, unless the subject or context otherwise requires—

“adequate alternative apparatus” means alternative apparatus adequate to enable the company to fulfil their statutory functions in a manner not less efficient than previously;

“apparatus” means any mains, pipes or other apparatus belonging to or maintained by the company (other than the apparatus referred to in section 47 (For further protection of Mid-Sussex Water Company) of this Act being apparatus in respect of which the relations between the Council and the company are not regulated by the provisions of the Public Utilities Street Works Act 1950) and includes any works constructed for the lodging therein of apparatus;

“the company” means the Mid-Sussex Water Company;

“land” includes land covered by water;

“specified work” means any work carried out or thing done under the powers of section 15 (Power to construct works), section 17 (Power to construct bridges, etc., and to execute temporary works on railways), section 18 (As to construction of works), section 19 (Power to make subsidiary works), section 20 (Subsidiary works in river or elsewhere) and section 21 (Underpinning of houses near works) of this Act;

“in” in a context referring to apparatus includes under, over, across, along or upon;

“position” includes depth:

(2) Notwithstanding anything in this Act or shown on the deposited plan the Council shall not acquire any apparatus under the powers of this Act otherwise than by agreement:

(3) If the Council in the exercise of the powers of this Act acquire any interest in or use any land in which apparatus is placed, that apparatus shall not be removed from any land or street in which it is situated, nor shall any right of the company to use, maintain, repair, renew or inspect any apparatus in that land or street be extinguished, until any necessary adequate alternative apparatus has been constructed and is in operation to the reasonable satisfaction of the company:

(4) (a) If the Council for the purposes of or in connection with the construction of any specified work require the removal of any apparatus, they shall give to the company written notice of such requirement together with a plan and section of the work proposed and of the proposed position of the alternative apparatus (if any) to be provided;

(b) If the Council require the company to remove any apparatus permanently from any land or street, or if, in consequence of the exercise of the powers of this Act, the company shall reasonably require the permanent removal of any apparatus, the Council shall, if practicable, afford to the company the necessary facilities and rights for the construction of adequate alternative apparatus in other lands of the Council and thereafter for the maintenance, repair, renewal and inspection of such apparatus:

Provided that if the alternative apparatus or any part thereof is to be constructed elsewhere than in other lands of the Council and the company are unable to afford such facilities and rights as aforesaid the company shall, on receipt of a written notice to that effect from the Council, forthwith use their best endeavours to obtain the necessary facilities and rights:

(5) (a) Any alternative apparatus to be constructed in lands of the Council in pursuance of paragraph (4) of this section shall be constructed in such manner and in such line or situation as may be agreed between the company and the Council or, in default of agreement, settled by arbitration;

(b) The company shall, after the manner of construction and the line and situation of any alternative apparatus have been agreed or settled by arbitration, as aforesaid, and after the grant to the company of any such facilities and rights as are referred to in paragraph (4) of this section, proceed with all reasonable dispatch to construct and bring into operation any such alternative apparatus

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—cont.

and to remove any apparatus required by the Council to be removed under the provisions of this section and, in default, the Council may remove the apparatus:

- (6) (a) Not less than twenty-eight days before commencing to execute any specified work which is near to or is likely to affect any apparatus the removal of which has not been required by the Council under paragraph (4) of this section, the Council shall submit to the company a plan, section and description of the work to be executed;
- (b) Such work shall be executed only in accordance with the plan, section and description submitted as aforesaid and in accordance with such reasonable requirements as may be made by the company for the alteration or otherwise for the protection of the apparatus, or for securing access thereto, and the company shall be entitled by their officer to watch and inspect the execution of such work:

Provided that—

(i) if the company within fourteen days after the submission to them of any such plan, section and description shall, in consequence of the work proposed by the Council, reasonably require the removal of any apparatus and give written notice to the Council of such requirement the foregoing provisions of this section shall apply and have effect as if the removal of such apparatus had been required by the Council under paragraph (4) thereof; and

(ii) nothing in this sub-paragraph shall preclude the Council from submitting at any time, or from time to time, but in no case less than twenty-eight days before commencing the execution of any such work, a new plan, section and description in lieu of the plan, section and description previously submitted and thereupon the provisions of this paragraph shall apply to and in respect of such new plan, section and description;

- (c) The Council shall not be required to comply with sub-paragraph (a) of this paragraph in a case of emergency but, in such a case, they shall give to the company notice as soon as reasonably practicable and a plan, section and description of the work as soon as reasonably practicable thereafter and shall comply with sub-paragraph (b) of this paragraph so far as reasonably practicable in the circumstances:

(7) If in consequence of the exercise of the powers of this Act the access to any apparatus is materially obstructed the Council shall provide an alternative means of access to such apparatus:

(8) If by reason or in consequence of the execution of any of the specified works or any subsidence resulting from any of those works any damage to any apparatus (other than apparatus the repair of which is not reasonably necessary in view of its intended removal for the purposes of those works) or property of the company or any interruption in the supply of water by the company shall be caused, the Council shall bear and pay the cost reasonably incurred by the company in making good such damage or restoring the supply, and shall—

(a) make reasonable compensation to the company for any loss sustained by them; and

(b) indemnify the company against all claims, demands, proceedings, costs, damages and expenses which may be made or taken against or recovered from or incurred by the company;

by reason or in consequence of any such damage or interruption:

Provided that—

(i) nothing in this paragraph shall impose any liability on the Council with respect to any damage or interruption which may be attributable to the act, neglect or default of the company or their contractors or workmen;

(ii) the company shall give to the Council reasonable notice of any claim or demand as aforesaid and no settlement or compromise thereof shall be made without the prior written consent of the Council:

(9) Where in consequence of this Act any highway or part of a highway in which any apparatus is situate is stopped up or diverted, other than temporarily stopped up or diverted under the powers of section 27 (Power to prevent access to or from Work No. 1) or section 28 (Temporary stoppage of highways) of this Act, the company shall, notwithstanding such stopping up or diversion, have the same powers and rights in respect of any apparatus remaining in the highway so stopped up or diverted as if the same had remained a highway, and no interest in such apparatus shall vest in the Council by virtue of section 19 (Power to make subsidiary works) or section 20 (Subsidiary works in river or

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—cont.

elsewhere) of this Act except under paragraph (2) of this section but nothing in this paragraph shall prejudice or affect any right of the Council or of the company to require the removal of such apparatus under this section:

- (10) The Council shall repay to the company the reasonable expenses incurred by the company in or in connection with—

(a) the removal and relaying or replacing of any apparatus and the provision, laying down, erection or placing of any new apparatus under the provisions of paragraph (4) of this section or of that paragraph as applied by sub-paragraph (i) of the proviso to sub-paragraph (b) of paragraph (6) of this section, or under the provisions of paragraph (5) or (9) of this section, less the value of any apparatus removed in pursuance of the provisions of this section (such value being calculated after removal);

(b) the cutting off of any apparatus from any other apparatus;

(c) the superintendence, or watching and inspection under the provisions of paragraph (6) of this section, of any works executed by the Council; and

(d) any other work or thing rendered reasonably necessary in consequence of the operations referred to in this paragraph:

Provided that—

(i) if the company provides, lays down, erects or places apparatus of better type or of greater capacity or (otherwise than at the request of the Council or in accordance with the award of an arbitrator) at a greater depth than the existing apparatus, the company shall bear such proportion of the cost of such provision, laying down, erection or placing as represents the amount by which such cost exceeds the cost which would have been incurred if the type or capacity or depth of the apparatus so provided, laid down, erected or placed had been the same as that of the existing apparatus;

(ii) any amount payable by the Council to the company under this paragraph in respect of the provision, laying down, erection or placing of new apparatus in substitution for apparatus provided, laid down, erected or placed more than seven and a

half years earlier, shall be reduced by the amount of any financial benefit which may be derived by the company from the deferment of the time for the renewal of the apparatus in the ordinary course:

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—cont.

- (11) Any difference which may arise between the Council and the company under this section shall be determined by an arbitrator.

47. For the further protection of the company the provisions of this section shall, unless otherwise agreed in writing between the Council and the company, apply and have effect:—

For further
protection
of
Mid-Sussex
Water
Company.

- (1) In this section—

“ apparatus ” means the length of the 12-inch diameter water main of the company in land under the river between the sluice valves;

“ approved gauge ” means a test pressure gauge with a test certificate acceptable to the Council;

“ the company ” means the Mid-Sussex Water Company;

“ the Council ” includes their appointed agents;

“ in ” in a context referring to apparatus includes under, over, across, along or upon;

“ the sluice valves ” means the two sluice valves on the said water main and situated one on each side of the river:

- (2) Before the Council commence piling in connection with the bridge or dredging the river within the limits of deviation of Work No. 1 the Council shall give to the company seven days' notice in writing of the piling or dredging proposed:
- (3) For the purpose of or in connection with the construction of the bridge the Council shall not carry out any piling works nearer to the apparatus than will leave a distance of 7.5 metres between the face of the pile and the side of the apparatus:
- (4) For the purpose of ascertaining whether damage has been caused to the apparatus by such piling or dredging as aforesaid, the following tests shall be carried out in the presence of representatives of the Council within three working days after the receipt by the company of the notice referred to in paragraph (2) of this section:—
- (a) an approved gauge, supplied by the company, shall be connected to the hydrant between the sluice

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—cont.

valves by means of $\frac{3}{4}$ inch piping not exceeding 5 feet in length. A $\frac{1}{2}$ inch tap shall be fixed to the said piping;

(b) the Company shall cease pumping at their Poverty Bottom source, after which the sluice valves will be closed and pumping at the said source shall not be resumed until after the conclusion of the test;

(c) if when the sluice valves are closed any leakage past them measured by the flow from the said tap does not exceed 2 gallons per minute the test shall be continued. Should the rate of flow through the tap during any one test exceed 2 gallons per minute, then that test shall be deemed null and void if either the Council or the company so require;

(d) readings of the said gauge will be taken when the requirement in paragraph (c) has been satisfied and the tap shut, and again after the period of the test;

(e) the first test shall be carried out before either the piling or dredging works begin. A final test will be carried out within twenty-four hours after either or both of these works are completed;

(f) the first test will not be acceptable if the pressure drop over an interval of fifteen minutes is 10 feet or more;

(g) if within the said period of three working days no satisfactory test has been made, the Council shall be entitled to proceed with the piling or dredging works of which notice has been given under paragraph (2) of this section;

(h) if, after a satisfactory previous test, the pressure drop in two minutes in the final test exceeds 150 feet, then damage will be deemed to have been caused;

(i) the Council or the company may request any test to be repeated within twenty-four hours of results being established and may request that a test be carried out during the progress of either the piling or the dredging works:

- (5) If by reason or in consequence of the execution of piling or dredging works in connection with the specified work or any subsidence or heaving resulting from any such work any damage to the apparatus shall be deemed to have been caused as set out in the foregoing paragraph and any interruption in the supply of water by the company shall be caused, the Council shall accept

liability for and shall bear and pay the cost reasonably incurred by the company in making good such damage or restoring the supply, and shall—

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—cont.

(a) make reasonable compensation to the company for any loss sustained by them; and

(b) indemnify the company against all claims, demands, proceedings, costs, damages and expenses which may be made or taken or recovered from or incurred by the company;

by reason or in consequence of any such damage or interruption:

- (6) Any difference which may arise between the Council and the company as to any amount payable by the Council under the last foregoing subsection shall be determined by arbitration.

48.—(1) Section 220 of the Town and Country Planning Act 1962 (which for the avoidance of doubt declares that the provisions of that Act and any restrictions or powers thereby imposed or conferred in relation to land apply to land notwithstanding that provision is made by any local Act passed before or during the session 10 & 11 Geo. 6 for authorisation or regulation of development of the land) shall apply to this Act as if it had been passed during that session; and accordingly the Town and Country Planning Acts 1962 to 1968 and orders, regulations, rules, schemes and directions made or given thereunder shall apply to development authorised by this Act. Saving for
Town and
Country
Planning Acts.
1962 c. 38.

(2) In their application to development authorised by this Act, article 3 of, and Class XII in Schedule 1 to, the Town and Country Planning General Development Order 1963 (which permit development authorised by private Act designating specifically both the nature of the development thereby authorised and the land on which it may be carried out) shall have effect as if the authority to develop given by this Act were limited to development begun within five years after the passing of this Act.

(3) In this section the reference to article 3 of and Class XII in Schedule 1 to the Town and Country Planning General Development Order 1963 includes a reference to corresponding provisions of any general order superseding that order made under section 14 of the Town and Country Planning Act 1962 or any corresponding provision of an Act repealing that section.

49. Where under this Act any difference (other than a difference to which the provisions of the Act of 1965, as applied by this Act, apply) is to be referred to or settled by arbitration, then, unless Arbitration.

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—cont.

otherwise provided, such difference shall be referred to and settled by a single arbitrator to be agreed between the parties or, failing agreement, to be appointed, on the application of either party (after notice in writing to the other), by the President of the Institution of Civil Engineers.

Repeal.

50. On the date on which the removal of the existing bridge is completed pursuant to the provisions of section 37 (As to removal of existing bridge) of this Act, the following provisions of the Act of 1863 shall be and are hereby repealed:—

Section 8 (New road free of tolls);

Section 9 (Mode of constructing bridge over river);

Section 10 (Height and width of bridge);

Section 11 (Provision for requiring lights to be exhibited during and after construction of works according to directions of Board of Trade);

Section 12 (Provision for regulating opening of Bridge over river);

Section 14 (Provision for requiring deposit of working drawings and approval of Board of Trade).

Costs of
Act.

51. All the costs, charges and expenses preliminary to and of and incidental to the preparing, applying for, obtaining and passing of this Act, or otherwise in relation thereto, shall be paid by the Council out of the county fund of the Council or out of moneys borrowed under this Act.

SCHEDULE

Section 41.

SECTIONS OF PUBLIC HEALTH ACT 1936 APPLIED

1936 c. 49.

Section	Marginal note
271	Interpretation of “ provide ”.
283	Notices to be in writing; forms of notices, etc.
284	Authentication of documents.
285	Service of notices, etc.
286	Proof of resolutions, etc.
288	Penalty for obstructing execution of Act.
296	Summary proceedings for offences.
304	Judges and justices not to be disqualified by liability to rates.
328	Powers of Act to be cumulative.

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